

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406744	CRISTESCU VS WELLS FARGO BANK, N.A.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSIONS, SET ONE

Tentative Ruling:

On May 6, 2026, Plaintiff Dorina Cristescu (in pro per) filed a Motion to Compel Further Responses to Plaintiff's Requests for Admissions and Requests for Production of Documents, to Deem the Matters in the Requests for Admissions Admitted, and for Monetary Sanctions. Accompanying the motion is a Proof of Service, signed by Virgil Cristescu.

Defendant Wells Fargo has not filed an opposition.

The Court understands that Plaintiff is in pro per, and to the pro per litigant, "interrogatories, requests for admissions, law and motion proceedings, and the like" are "baffling devices." (*Bruno v. Superior Court* (1990) 219 Cal.App.3d 1359, 1363, quoting *Burley v. Stein* (1974) 40 Cal.App.3d 752, 755, fn. 3.)

Nonetheless, Plaintiff's Motion to Compel is procedurally incomplete, and to grant the motion would be to deny Defendant its due process rights. In particular:

1. The Motion does not indicate the date on which it will be heard. Instead, the Notice of Motion simply states, "PLEASE TAKE NOTICE that on [insert reserved hearing date], at 8: 30 a.m., or as soon thereafter 18 as the matter may be heard, in Department 2 of the above-entitled Court . . ." (Motion, p. 1:17-18.) Since no date is indicated, Defendant cannot know when it is to appear. Further, it is incorrect that the hearing is to be held in Dept. 2; this case is assigned to Dept. 3.
2. The Notice of Motion is not signed. It simply has a blank line where the signature should be. (Motion, p. 2:4-7) Pursuant to CCP §128.7, "Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not represented by an attorney, shall be signed by the party."
3. Similarly, the Motion itself is not signed. It too simply has a blank line where the signature should be. (Motion, p. 4:5-8; See CCP §128.7.)
4. Lastly, the Declaration of Plaintiff Dorina Cristescu is not signed. The declaration simply states, "I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, Executed on May 6, 2026, at Lake Elsinore, California." Underneath the affirmation is the typed name "Donna Cristescu," but there is no signature. (See CCP §128.7.)

This Court recognizes that “Providing access to justice for self-represented litigants is a priority for California courts.” (California Rules of Court, rule 10.960, subdivision (b).) “[W]hen a litigant is self-represented, a judge has the discretion to take reasonable steps, appropriate under the circumstances and consistent with the law and the canons, to enable the litigant to be heard.” (See also ABA Model Code of Jud. Conduct, canon 2, rule 2.2, com. 4 “[i]t is not a violation of this Rule [regarding impartiality and fairness] for a judge to make reasonable accommodations to ensure pro se litigants the opportunity to have their matters fairly heard”].) The canons and commentary thus provide a path to ensure a self-represented litigant can be fairly heard on the merits while the court maintains its impartiality and does not assume (or appear to assume) the role of advocate or partisan. (See Cal. Code Jud. Ethics, canon 3 [“a judge shall perform the duties of judicial office impartially, competently, and diligently”].)” (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.)

At the same time, “[a] party proceeding *in propria persona* ‘is to be treated like any other party and is entitled to the same, but no greater[,] consideration than other litigants and attorneys.’” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985.) Indeed, “the *in propria persona* litigant is held to the same restrictive rules of procedure as an attorney.” [Citation.]” (*First American Title Co. v. Mirzaian* (2003) 108 Cal.App.4th 956, 958, fn. 1; see also *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.)

This is a “difficult balance” for the Court. (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.) However, due to the serious errors of Plaintiff’s Motion, it would be error for the Court to grant the motion.

Tentative Decision

The Court DENIES, without prejudice, Plaintiff’s Motion to Compel. Plaintiff may re-file her motion if she so chooses, keeping in mind that the Notice of Motion, Motion and Declaration must all be signed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501697	RENEAU VS LOVE TRANSIT, INC.	MOTION FOR LEAVE TO INTERVENE ON BEHALF OF OBSIDIAN SPECIALTY INSURANCE AS INTERVENOR FOR LOVE TRANSIT

Tentative Ruling:

On 5/6/26, Obsidian Specialty Insurance Co. filed its Motion to Intervene and Proposed Complaint-in-Intervention.

Pursuant to Obsidian, “This Motion is made pursuant to Code of Civil Procedure Section 387(d) on the grounds that Obsidian provides automobile liability insurance to